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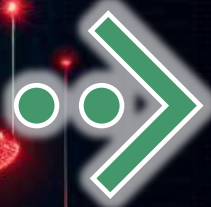
Amsterdam - London - Singapore



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Christmas Edition

- AI Governance:
*What Happened
in 2025?*



Authors

Sean Musch, Michael Borrelli, Charles Kerrigan,
Lisa McClory



In 2025, the EU kicked off a rapid-fire AI overhaul—banning risky AI practices in February, locking in industry codes by May, rolling out sweeping compliance rules for powerful models in August, launching a hands-on “Apply AI” support strategy in October, and closing the year with a major legislative update to streamline the entire system.

Prohibited AI Rules start

Prohibited AI practices and basic AI-literacy requirements start to apply across the EU.



2 February
2025

2 May
2025



Code of Practice Due

The Commission must finalise the first codes of practice that guide compliance for AI providers.

AI Act Obligations Start

Rules for general-purpose AI (GPAI) models, notified bodies etc., all begin.



2 August
2025

7 October
2025



Apply AI Strategy Set

The Commission launches the Apply AI Strategy and the AI Act Service Desk as a support tool.

Digital Omnibus Announced

The Commission publishes the Digital Omnibus on AI, starting a process to simplify EU AI Act.



19 November
2025

In 2025, EU AI Act readiness across the EU27 showed a clear divide. A small group of frontrunners — Denmark, Hungary, Ireland, Italy, Malta and Spain — reached Green status, having enacted national frameworks and designated the authorities needed to enforce the Act. The majority of Member States fell into the Amber category, with draft laws underway, partial authority listings, or sector-based approaches that still require consolidation before full compliance is possible. Meanwhile, Austria, Bulgaria, Latvia, Portugal, Slovakia and Slovenia remained in the Red zone, where progress was still at an early planning stage and key enforcement bodies had yet to be formally established.

Country	Status	Description
	Red	No AI-specific law or notifying/market surveillance authority yet; only an AI Service Desk and advisory forums.
	Amber	No implementation law; many bodies listed for co-operation but no single designated enforcement authority.
	Red	Only preliminary preparations; no implementing law or authority appointments reported.
	Amber	Draft implementing law in preparation; lists of authorities published but notifying authority not yet designated.

		Article-77 (fundamental-rights) authorities notified, but no market-surveillance/notifying authority or full law yet.
		National “AI Implementation Plan” adopted; planning and capacity building but no formal notifying authority.
		National Act adopted (8 May 2025); notifying & market surveillance roles designated and enforcement framework set.
		No separate AI law — relies on EU framework; Article-77 authorities notified but no notifying/market body public.
		Draft implementing act designates multiple market surveillance authorities; bill in parliamentary process.
		Sectoral/draft national law approach; draft “Loi IA” being prepared with sectoral regulators to enforce.
		Relying on EU Act; draft national implementing/market-surveillance proposals and consultations underway.
		Article-77 authorities listed; no single market surveillance / notifying authority or full implementing law yet.
		Implementing framework enacted (Act LXXV/2025 and Decree) with notifying and market surveillance authorities designated.
		15 national competent authorities designated and a National AI Implementation Committee; National AI Office planned.
		National implementing law enacted (Law No.132/2025) with ACN/AgID roles and an enforcement framework.
		Early planning stage — only the Ombudsman listed in consolidated EU lists; no formal authority designations published.
		Draft implementation law designates MITA and RRT as notifying/market surveillance authorities; law pending.
		Draft implementing law tabled; CNPD and several notifying/market bodies proposed but not yet finalised.

		National AI law in force (AI & Digital Innovation Act 2023); MDIA and IDPC designated for market surveillance.
		No new law; coordination among existing agencies and guidance work ongoing — formal designations pending.
		Draft implementing acts planned (new AI regulator proposed); preparatory roadmap and notifications in progress.
		Limited public progress beyond mapping agencies; no single authority or implementing law yet.
		National AI strategy foresees a new AI Authority (ADR) to act as notifying/market body; law pending.
		Only limited steps (two authorities in EU list); no market surveillance/notifying authority or implementing law published.
		Planning stage: ministry responsible and expert council expected but no formal authority designations or law yet.
		AESIA (Spanish AI Supervisory Agency) already established and designated as market surveillance / SPOC; draft national law builds on it.
		No special national AI Act; implementation relies on existing agencies and position papers — formal designations still pending.





AI & Partners

Amsterdam - London - Singapore

Who Are We *AI That You Can Trust*

Why Us?

Stay on the right side of history. At AI & Partners, we believe AI should unlock potential—not cause harm. We've seen the fear and fallout when teams lose control of AI, but also the trust and innovation that follow when it's handled responsibly. That's why we exist: to help you build AI you can trust and stand behind—for the long run.

What Do We Do?

We enable safe AI usage—for your organization and your clients. Unknown AI adoption leads to confusion, risk, and reputational damage. We help you take control with tools to identify, monitor, and govern all AI systems—so you're not reacting to AI, you're leading it.

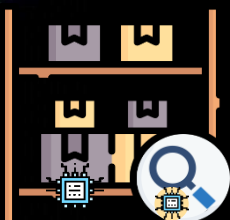
How Do We Do It?

Do you know what AI systems you have? Identify all known and unknown AI systems (algorithms, LLMs, prompts, and models) from all internal and external AI vendors, automated by generating your inventory. Overall, 80% of AI inventory is unknown to our clients.

How do you guarantee ongoing safe AI use? Continuously monitor deployed AI systems for performance drift, anomalies or failures, real-world impacts, and emerging risks (e.g. data poisoning). Any malfunction of an AI system has severe implications for organisations (e.g. inability to assess online misinformation that leads to widespread public mistrust), so monitoring becomes a matter of urgency.

80%

of AI systems
are unknown



AI Discovery & AI Inventory

Automatically detect all AI systems, including models, algorithms, and prompts, and maintain a live, always-updated register for full visibility and compliance.



Responsible AI

Embed fairness, transparency, and control into every stage of AI use—aligning with the EU AI Act and building 'Trustworthy-by-Design'.



Model Monitoring

Continuously track your AI models after deployment to detect drift, bias, or failure—so you stay in control and prevent harm before it happens.

Contact: Team | contact@ai-and-partners.com

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Executive Summary



It has now been a full year since the EU Artificial Intelligence Act entered into force.

Over the past 12 months we have begun to see the first benefits of Europe's new regulatory approach to AI — and also its early growing pains. People and organisations across the EU have started to test and use the rights and safeguards the Act provides: seeking explanations about automated outputs, invoking obligations for human oversight, querying high-risk AI assessments, and flagging transparency shortcomings for systems that interact with people. At the same time, complaints and notifications about unsafe or non-compliant systems have been brought to national authorities; a number of investigations and initial enforcement actions have begun; and market surveillance bodies have started to apply conformity and post-market monitoring rules. In this report from AI & Partners we review how the AI Act has been implemented during its first year of application and set out what must happen next for the law to fulfil its promise: the first year revealed the framework — the next must be the year of consistent, coordinated enforcement.

AI & Partners analysed how the AI Act's central requirements have been transposed and applied across the EU Member States, focusing on measures that directly affect users' rights and safety. The results are presented in this report. Based on our findings we offer a set of targeted recommendations to ensure that the protections and obligations contained in the AI Act are effectively delivered across the Union. These recommendations are addressed to EU Member States and their

national competent authorities, to the European Commission, and to the European Artificial Intelligence Board (EAIB) (and other relevant EU bodies).

Despite the transition period that accompanied adoption of the Act, a number of Member States have been slow to adapt national practices, guidance, and enforcement capacity to the new regime. Several Member States have taken a wide or divergent view of the derogations, limited transparency requirements, or procedural flexibilities available under the Act — a trend that risks producing fragmentation in the level of protection against harmful AI across the Single Market. In some cases, national measures or administrative decisions risk contradicting the spirit and objectives of the AI Act by weakening safeguards for people's safety, fundamental rights, or access to remedies. We therefore urge the European Commission to use its powers under the Treaties to intervene where national measures undermine the core purpose of the AI Act and place people's rights and safety at risk.

This report examines in detail the implementation of eight key provisions of the AI Act across Member States.

Those provisions include: safeguards for children and other vulnerable groups when exposed to AI; rules governing automated decision-making and the right to contest significant, adverse outcomes; general restrictions and permissible exceptions to rights and obligations under the Act; obligations for post-market monitoring and

AI incident reporting; accessible complaint and redress pathways for affected individuals; research and innovation exemptions and their boundaries; conformity assessment and CE-like marking procedures; and the functioning, powers, and resourcing of national competent authorities and market surveillance bodies.

For each area we identify risks of fragmentation and propose concrete recommendations to achieve harmonised interpretation and application across the EU. We recommend, for example, that Member States ensure any national implementing measures are fully aligned with the letter and purpose of the AI Act; that the European Commission intervene where users' rights are restricted through poor or inconsistent transposition; that national authorities prioritise and expedite the processing of complaints and incident reports affecting safety and fundamental rights; and that the EAIB facilitate rapid, transparent cooperation and issue clear, binding guidance on contested technical and legal issues.

The effectiveness of the AI Act will be determined by its weakest implementation link — early and decisive action is therefore essential to prevent fragmentation from undermining the benefits it can deliver. In a digital economy increasingly shaped by powerful AI systems, the importance of a robust, enforceable European standard for trustworthy AI has already been recognised across the world.

Although negotiating the AI Act took many years and its adoption was a significant milestone, that achievement is only the first step. The real test is consistent delivery: strong, predictable implementation and coordinated enforcement that turn legal

promises into practical protection for people across the EU. Much of that responsibility rests with national competent authorities and market surveillance bodies; they must act swiftly and in a coordinated way. Yet Member States are currently not providing uniform levels of funding, staffing, or technical expertise to these authorities, limiting their ability to perform essential tasks such as conformity assessments, inspections, and investigations. This report includes recommendations to ensure adequate resourcing and to safeguard the independence and technical capacity of national authorities.

With sustained investment and commitment from the European Commission, Member States, national authorities, industry, and civil society — and with clear, harmonised guidance from the EAIB — the EU Artificial Intelligence Act can become a landmark achievement in protecting safety, rights, and democratic values in the age of AI. AI & Partners believes that, with the right follow-through, it will stand as one of the EU's most important regulatory successes for the protection of fundamental rights.



Introduction





On the day the EU Artificial Intelligence Act entered into application, a new European framework for regulating AI became directly relevant to providers, deployers, national authorities and — importantly — the people affected by AI systems. One year on, we are assessing the impact the Act has had so far on users' rights and safety, and identifying the practical and legal challenges that lie ahead.

For this report, AI & Partners examined how Member States are implementing the AI Act and how they are using the exceptions, flexibilities and national measures that the Regulation allows. The AI Act is a Regulation, meaning its core obligations are directly applicable across the Union; nevertheless, the Act also provides Member States with room to adopt national measures, interpret certain requirements, and set procedural arrangements. We therefore focused our review on eight priority areas where national choices have the most direct effect on people's rights, safety, and access to remedies:

- Protections for children and other vulnerable groups when they interact with AI systems
- Rules and safeguards for automated decision-making and the ability to contest significant, adverse outcomes produced by AI
- National restrictions, exceptions, and permissible derogations from the Act's requirements
- Obligations for AI incident reporting, post-market monitoring, and transparency toward affected individuals

- Powers, investigative tools and sanctioning competence of national competent authorities and market surveillance bodies
- Mechanisms for representation and collective redress for people harmed or disadvantaged by AI systems
- Research and innovation exemptions, including the use and limits of regulatory sandboxes
- Conformity assessment procedures, marking and provider/deployer accountability

While Member States may rely on other narrowly framed flexibilities in the Act, we selected these areas because of their central importance to users' rights and to preserving a harmonised single-market approach to trustworthy AI.

Our methodology combined a review of national implementing measures, guidance and administrative practices for all Member States that had adopted national implementing arrangements at the time of this research, together with an analysis of draft measures in countries still establishing their national frameworks. We reviewed texts in their original languages and, where available, official English versions; links to the national documents we analysed are provided in the annex.

To test how easy it is for people to find information about their rights and remedies under the Act, we searched national texts by chapter and by key words that correspond to the relevant Act provisions — the same practical approach a non-legal user would take. Where academic research or civil-society reports already addressed particular topics, we



#used those sources to corroborate and refine our findings.

When we say a Member State did not make use of a particular flexibility, we mean it did not introduce national measures or references to that flexibility in its implementing texts. When we say a Member State has made a national adaptation or deviation, we mean it has expressly relied on one or more of the Act's permitted options and set out additional conditions or procedures in domestic law.

We also examined the work of national competent authorities and the European Artificial Intelligence Board, and reviewed the behaviour of large technology companies and the reactions of users since the Act became applicable. That element of the research drew on academic articles, official authority reports, and news coverage; it did not include stakeholder consultations, interviews with affected individuals, or a systematic review of complaints and case files.

From these findings, AI & Partners sets out targeted recommendations for Member States, the European Commission, national competent authorities, and the European Artificial Intelligence Board to address fragmentation risks, strengthen harmonised interpretation, and ensure the Act delivers consistent protection of fundamental rights and safety across the EU.



Implementation



Implementation Status

Country	Country
	Austria has not yet enacted AI-specific legislation or appointed the AI Act authorities. Its government set up an “ AI Service Desk ” under the broadcasting/telecom regulator (RTR) to support stakeholders. The Digital Austria portal published a list of 19 relevant public bodies (across sectors like transport, health, etc.) to be involved in AI oversight. The government also established three AI policy forums (an expert advisory board, an inter-ministerial policy forum, and a stakeholders forum) to guide AI-related policy. However, no single market surveillance or notifying authority has been designated, and formal enforcement planning is still at an early stage.
	Belgium has not passed an AI Act implementation law. Instead, authorities rely on existing structures and consultative bodies. The FPS Economy published a list of 26 public bodies (e.g. various ministries and agencies) that will participate in AI regulation and enforcement. Belgium also created an Ethics Advisory Council on Data and AI (by royal decree in 2023) to advise government on AI matters. As of mid-2025 Belgium had not designated a single AI Act enforcement authority (Article 70), though 21 authorities have been identified for protecting fundamental rights under high-risk AI (Article 77). The Belgian Data Protection Authority (APD) has issued guidelines on AI, but enforcement planning awaits further coordination of these bodies.
	Bulgaria has made only preliminary preparations. No implementing law or authority appointments have been announced. The Ministry of Electronic Governance represented Bulgaria in EU AI Board meetings, and the Commission’s public list shows 9 Bulgarian bodies (e.g. sector regulators) to be involved in AI rights oversight. Otherwise, Bulgaria’s AI Act implementation is still in the planning phase – for example, a new national AI strategy or enforcement framework has not been published, and no market surveillance or notifying body has been named.
	Croatia has started drafting an implementation law , but it is still in preparation. In December 2024 the government published a list of 7 authorities (e.g. the Ombudsperson, Data Protection Agency, media regulator) responsible for fundamental-rights protections under the AI Act. An inter-ministerial <i>working group</i> was formed in mid-2025 to draft the national AI Act implementing regulation. Activists have urged

	that the Data Protection Agency be named the market surveillance authority, but no official enforcement authority has yet been designated. Implementation efforts focus on drafting the law and consulting stakeholders; formal law adoption is expected before the August 2025 deadline.
	Cyprus has fulfilled the first step of AI Act implementation by notifying its Article 77 authorities. On 6 November 2024 the Deputy Ministry for Research, Innovation and Digital Policy notified the EU of three national authorities (the Commissioner for Personal Data Protection, the Ombudsman, and the Attorney-General) tasked with fundamental-rights oversight for high-risk AI. These authorities will gain extra powers from 2 Aug 2026. However, Cyprus has not yet designated any market surveillance or notifying authority for the AI Act, nor passed additional legislation. Current efforts are limited to meeting the rights-protection requirement, with broader regulatory designations to be defined before the Act's 2026 application.
	The Czech Republic has no new AI-specific law yet . Instead, in June 2025 the government approved a national "AI Implementation Plan" (Ministry of Industry and Trade) to align Czech law with the EU Act. This plan, tied to the revised Czech AI Strategy 2030 (adopted July 2024), outlines legal changes and institutional steps for enforcement. Two authorities have been listed for fundamental-rights enforcement (per Article 77) by the government portal, but no formal market-surveillance or notifying authority has been declared. The focus is on planning (updating national strategies and building capacity) rather than on immediate legislation.
	Denmark has enacted a national law implementing the EU AI Act. On 8 May 2025 the Parliament adopted a bill supplementing the EU rules. The law designates the Danish Agency for Digital Government as both the notifying authority and (with two others) a market surveillance authority. The same Agency is named Single Point of Contact. Two other agencies – the Danish Data Protection Authority and the Danish Court Administration – are also appointed as market surveillance authorities. The criminal penalties regime for AI Act violations is also set out in the law. Implementation is thus well underway: existing institutions have clear roles, and workgroups had already been meeting to consult stakeholders before the law's passage.
	Estonia has no separate AI Act law . Initially Estonia considered its own AI law, but decided to rely on the EU framework. In accordance, the government notified the EU of three Estonian authorities for

	fundamental-rights oversight (published by the Ministry of Economic Affairs in 2024). These authorities will use expanded powers from Aug 2026. No market surveillance or notifying authority has been publicly named. Instead, Estonia focuses on strategic initiatives: for example, it is preparing a <i>White Paper on Data and AI</i> and investing in AI education. Overall, Estonia's implementation approach is to integrate the EU Act via existing structures and policies.
	Finland is preparing national implementing legislation. A government working group began in April 2024 to draft an AI Act implementation bill. In Oct 2024 the Ministry of Economic Affairs published a draft implementation act that assigns 10 existing agencies as market surveillance authorities (the Transport and Communications Agency Traficom is SPOC). This draft also includes eight authorities (plus Åland's bodies) for fundamental-rights enforcement. The bill is now under inter-ministerial and parliamentary review. No final legislation or notifying authority has been confirmed yet, but Finland is on track: stakeholder consultations and preparatory guidance (e.g. lists of authorities) are advancing.
	France is drafting a national law to implement the AI Act. Rather than overhaul its statutes, France's model is decentralized oversight. Sectoral regulators will enforce different AI requirements under the new law. For example, CNIL (the data protection authority) will police prohibited biometric AI and emotion-recognition bans, while the National Medicines Agency (ANSM) will oversee high-risk medical AI. The Directorate General for Competition (DGCCRF) is named single point of contact coordinating these authorities. The draft law (working title <i>Loi IA</i>) is in preparation, with a public consultation held in early 2025. In parallel, French authorities have begun capacity-building: CNIL launched an AI sandbox for public services and issued guidelines, and DGCCRF is running industry working groups. Enforcement powers and sanctions will be set by the new law, expected in late 2025 or early 2026.
	Germany has not needed a full new AI law (the EU Act is directly applicable) but drafted a national implementation act. On 4 Dec 2024 the government published the "KI-Marktüberwachungsgesetz" draft, which is now in consultation (open until Oct 2025). This draft designates the Federal Network Agency (BNetzA) as the primary market surveillance and single contact authority. It also explicitly assigns the financial supervisor BaFin as the AI authority for high-risk financial services, while other sector authorities retain their duties.

	Germany had earlier formed an interagency coordination center (KoKIVO) at BNetzA and even started a “KI-Service Desk” for guidance. No final law is yet enacted, but the process (legislative draft, stakeholder consultation) is well underway.
	Greece’s implementation is still preliminary. On 12 Nov 2024 the Ministry of Digital Governance published the official list of 4 national authorities responsible for protecting fundamental rights under AI: the Ombudsman, the National Commission for Human Rights, the Data Protection Authority, and the Communications Security Authority (ADAE). These bodies will have extra powers from 2026 onwards. However, no specific AI law has been passed and no market surveillance or notifying authority has been announced. Future plans (e.g. the national AI strategy or enforcement framework) have not been publicly detailed. For now, Greece’s focus has been on meeting the Article 77 requirement, with broader regulatory arrangements to come.
	Hungary has now enacted its implementing framework . In October 2025 it passed Act LXXV/2025 and Government Decree 344/2025, effective 1 Dec 2025, to implement the AI Act. These instruments designate the National Accreditation Authority as Hungary’s AI “notifying authority” and the Minister of Enterprise Development (formerly National Economy) as the AI market surveillance authority and SPOC. These bodies will handle all enforcement of the EU AI Act in Hungary. Earlier, in May 2025 the government had resolved to the same effect, and a 2024 resolution set up a national AI Council for guidelines. The new law also expands Hungary’s enforcement reach (e.g. over any AI use on Hungarian territory). With these laws, Hungary has formalized its AI Act institutions and penalty regime.
	Ireland has actively prepared for the AI Act. On 16 Sept 2025 Ministers announced the designation of 15 national competent authorities (e.g. Competition, Transport, Health regulators) to enforce the AI Act across sectors. These authorities report to a single point of contact coordinated by the Department of Enterprise, Trade and Employment. Ireland also formed a National AI Implementation Committee and will establish a National AI Office by Aug 2026 as a central AI regulator. These bodies will coordinate enforcement and innovation (including a regulatory sandbox). Ireland’s approach emphasizes stakeholder engagement and capacity-building: a dedicated team is already meeting with industry and civil society to prepare guidance and supervisory procedures.

	Italy is finalizing its implementation bill. A government bill (S.1146/A.C.1146) was introduced in May 2024 and approved by the Senate on 20 Mar 2025. Under this draft law, the National Cybersecurity Agency (ACN) is designated as Italy's market surveillance authority, and the Agency for Digital Italy (AgID) as the notifying authority. The law will also define supervisory powers and penalties. The bill (which adds to Italy's existing regulatory framework) has been transmitted to the lower house. Once enacted, it will name the specific bodies for each category of AI systems; until then, these roles are pending. Implementation includes stakeholder consultation (the bill was developed with industry and data protection input) and awaits final parliamentary approval.
	Latvia's government has begun planning but has not passed new laws. The Ministry of Environmental Protection and Regional Development (VARAM) published a report in 2024 recommending that the Economics Minister be named the AI Act notifying authority and that 12–14 existing agencies handle market surveillance duties. So far only Latvia's Ombudsman is listed in the EU consolidated list of authorities. No formal implementing legislation has been adopted, and no official authority designations are yet public. Efforts appear focused on study and coordination: for example, the VARAM report suggests using the National Accreditation Bureau as accreditor, and envisages distributing enforcement tasks across sectoral regulators.
	Lithuania is drafting an implementation law. A bill before Parliament designates the Lithuanian Innovation Agency (MITA) as the national AI Act notifying authority and the Communications Regulatory Authority (RRT) as the market surveillance authority and SPOC. The same proposal identifies additional market surveillance agencies and includes a published list of four authorities (e.g. Data Protection Inspectorate) for rights oversight. The law also introduces an AI regulatory sandbox pilot program. Although not yet passed, this draft shows Lithuania's clear plan: it will rely on existing innovation and communications agencies for enforcement. Full implementation (once the law is adopted) is expected by mid-2026.
	Luxembourg has taken concrete steps. In Dec 2024 the government tabled a draft law implementing the AI Act. This bill confirms that the National Data Protection Commission (CNPD) will act as a national AI authority, and it sets out three AI notifying authorities: the Accreditation and Surveillance Office (AFAQ), the Medicines Agency, and the Government Data Protection Commissioner. Several other

	agencies will serve as market surveillance authorities under the law. The Ministry also published a list of three fundamental-rights authorities. A national AI strategy (expected in 2025) and public consultations are planned. Once enacted, Luxembourg's law will integrate EU rules by assigning tasks to these existing bodies.
	Malta was the first EU country to legislate nationally. In Oct 2023 Parliament passed the AI and Digital Innovation Act, 2023, which establishes the Malta Digital Innovation Authority (MDIA) and the Information and Data Protection Commissioner (IDPC) as joint market-surveillance authorities. The MDIA (together with the National Accreditation Board) is also named to perform EU Act conformity assessments. In Oct 2025 the government issued a legal notice formally designating the IDPC as MSA for certain high-risk AI uses (Annex III systems). Malta has published a list of 10 authorities (ministries and ombudsmen) for protecting fundamental rights. Implementation is thus advanced: the law is in force and authorities are appointed, and Malta is running innovation sandboxes and outreach to implement the EU AI framework.
	The Netherlands is still in planning. No new law has been passed; the government is updating sector laws as needed. The Ministry of Economic Affairs and Climate has published a list of six relevant authorities (e.g. Customs, Data Protection Authority, etc.) to assist with AI Act enforcement. The Dutch Data Protection Authority (AP) and the Digital Infrastructure Authority (ADI) have jointly issued recommendations (Sep 2024) on how to set up a governance structure for the AI Act, suggesting a hybrid of sectoral and horizontal supervision. Formal designations (the single market surveillance or notifying authority) have not been announced. The Netherlands is focusing on coordination among existing agencies and updating guidance (it participates in the EU's AI Board) ahead of the August 2025 deadline.
	Poland is drafting national implementing acts. The Ministry of Digital Affairs plans a first AI Act implementation bill by mid-2025 (possibly by July). This draft will establish a new Artificial Intelligence Supervision Commission (KNSI) as the national AI regulator, designate the Polish Centre for Accreditation as the notifying authority, and make the Data Protection Authority (PUODO) an additional AI supervisor. It will also set up enforcement procedures and penalties. So far no law text is public, but the government's AI Roadmap is under development. Meanwhile, Poland has notified the Commission of three authorities

	(e.g. the central bank, DPA, and financial regulator) for fundamental-rights oversight. Stakeholder consultations on the draft law began in 2024.
	Portugal has made limited public progress. The Agency for Administrative Modernisation (AMA) and the Ministry of Digital Transition are coordinating the AI Act implementation. In late 2024 the government published a list of 14 public agencies (including competition, consumer protection, telecoms, transport authorities) expected to play roles in AI oversight. No specific implementing law has been passed, and no single authority is yet designated. The effort so far has been to map responsibilities: for example, listing agencies that would enforce each high-risk AI requirement. Portugal appears to be building an inter-agency framework rather than creating new bodies, but further steps (such as formalizing these roles in law) remain to be completed.
	Romania is preparing a dedicated AI authority. Its AI strategy (July 2024) announced creation of an “ <i>Artificial Intelligence European Regulation Authority</i> ” under the national Digitalization authority (ADR). This new Authority will act both as the notifying and market surveillance authority for AI. The ADR (which chairs the EU AI Board for Romania) has also published a list of 9 agencies responsible for fundamental-rights protection under AI. No separate law has been enacted yet, but the strategy indicates that legislation will soon establish the new AI Authority and assign supervisory tasks to existing regulators. In parallel, Romania is running AI pilots and stakeholder consultations under its digitalization agenda.
	Slovakia has not passed specific AI Act legislation. To date only two Slovak authorities are listed in the EU’s consolidated list (for fundamental-rights oversight). Slovakia did establish an AI Ethics Commission (CERAI) in 2020 to advise on AI issues, and a civil-society platform “AISlovakia” fosters dialogue among industry, academia and government. Beyond these, there is no clear enforcement framework. No market surveillance or notifying authority has been designated, and no draft law has been published. Implementation so far is largely informal (ethics guidelines, advisory bodies), with the government still developing how existing agencies will share AI oversight.
	Slovenia’s implementation is still at the planning stage. The Ministry of Digital Transformation is responsible for transposing the AI Act, and an expert council was expected to be established (the government announced on 12 Sept 2024 the creation of a consultative AI Council).

	Ten authorities are named in the EU's consolidated list, but Slovenia has not formally published them nor passed new legislation. No single market surveillance authority or notifying body has been announced. Government statements emphasize updating the national digital strategy (Strategy Slovenia 5.0) and coordinating with stakeholders, but formal implementation measures are forthcoming.
	Spain is among the most advanced. In 2023 Spain created the Spanish AI Supervisory Agency (AESIA) as an autonomous body of the Digital Transformation Department. By Royal Decree 729/2023, AESIA is designated the national market surveillance authority and single point of contact. A national AI draft law was published for public consultation (Mar 2025). The draft Act builds on AESIA: it designates AESIA as the main enforcement authority for prohibited and high-risk AI across sectors, and assigns the Data Protection Agency (AEPD) supervisory duties for certain profiling and law-enforcement systems. It also involves sectoral regulators (e.g. Bank of Spain, securities regulator) as needed. A list of 12 other agencies for fundamental-rights matters has been issued. Spain is also running a national AI sandbox and outreach programs. Final law passage is expected in late 2025, fully aligning Spanish law with the EU Act.
	Sweden has not enacted special AI Act legislation. Implementation relies on existing agencies and initiatives. Swedish authorities (the Data Protection Authority and the Digital Government Authority) have issued position papers on the AI Act implementation. Four authorities appear in the EU list, and Sweden has established a national AI Council (AI-rådet) to promote research and innovation (though it is not an enforcement body). The Ministry of Finance represents Sweden on the EU AI Board. Formal steps for AI Act enforcement (designating a notifying authority, etc.) have not yet been announced. The government emphasizes stakeholder dialogue and has commissioned impact studies, but concrete regulatory action remains pending.



Regulatory Bodies Status

Country	National Competent Authorities (Art 28 and Art 70)	Authorities Protecting Fundamental Rights (Art 77)	Notes
	Unclear. An AI Service Desk has been established under the Austrian Regulatory Authority for Broadcasting and Telecommunications (RTR) to support the implementation of the EU AI Act. The notifying authority and market surveillance authorities have not been appointed.	<u>A list of 19 bodies, covering 8 different areas has been published by Digital Austria.</u>	Austria has established three forums to support its AI policy: a national AI Advisory Board ('KI Beirat') composed of experts from research and business; the AI Policy Forum consisting of members from different ministries; and the AI Stakeholders Forum where various stakeholders give input.
	Unclear. In the AI Board meeting on 10.09.2024, the Federal Public Service of Economy and the Agence du Numérique represented Belgium.	<u>A list of 26 bodies has been published by the Federal Public Service Economy.</u>	<u>Belgium has an Ethics Advisory Council on Data and AI appointed by the Minister of Civil Service and the State Secretary for Digitization.</u>

	Unclear. In the AI Board meeting on 10.09.2024, the Ministry of Electronic Governance represented Bulgaria.	9 authorities appear in the Commission consolidated list.	
	Unclear. In the AI Board meeting on 10.09.2024, the Central State Office for the Development of Digital Society represented Croatia.	The Ministry of Justice, Public Administration and Digital Transformation has designated 7 public authorities.	
	Unclear. In the AI Board meeting on 10.09.2024, the Ministry of Research, Innovation and Digital Policy represented Cyprus.	The Ministry of Research, Innovation and Digital Policy have identified a list of 3 public authorities, subject to changes.	
	Unclear. In the AI Board meeting on 10.09.2024, the Ministry of Industry and Trade represented the Czech Republic.	<u>A list of 2 authorities has been published by the Digital Czech Republic.</u>	<u>The Ministry of Industry and Trade was also in charge of adopting a revised national AI strategy in July 2024.</u>
	Partial clarity. The pre-existing Danish Agency for Digital Government has been designated as coordinating market surveillance authority	<u>A list of 7 authorities has been published by the Danish Agency for Digital Government.</u>	<u>A working group representing a range of actors (civil society, industry, public institutions, academia, etc) was established</u>

	and single point of contact. A legislative proposal suggests that the Minister for Digitalization can further designate market surveillance authorities.		<u>in September 2024.</u> <u>It will convene 3-4 times per year.</u>
	Unclear. In the AI Board meeting on 10.09.2024, the Ministry of Economic Affairs and Communications represented Estonia.	<u>A list of 3 authorities has been published by the Ministry of Economic Affairs and Communications together with the Ministry of Justice.</u>	
	Partial clarity. A draft implementing act from October, 2024, appoints 10 already existing market surveillance authorities (see English overview). The Finnish Transport and Communications Agency will act as the single point of contact. Unclear what body will be notifying authority.	A list of 8 authorities has been published by the Ministry of Economic Affairs and Employment of Finland. 2 additional authorities for Åland appear in the Commission consolidated list.	The draft implementing act is being processed in parliament – you can follow the status of the draft act here.
	Unclear. In the AI Board meeting on 10.09.2024, the Directorate General	<u>3 authorities appear in the Commission consolidated list.</u>	

	of Enterprises represented France.		
	Partial clarity. The Federal Ministry for Economic Affairs and Climate Action and the Ministry for Justice are jointly responsible for the implementation of the AI Act. Some sources (here and here) suggest that the Federal Network Agency will be designated as market surveillance authority and that the Federal Accreditation body will be appointed as notifying authority. Competent authorities had not been appointed by law as of September 2024.	<u>20 authorities appear in the Commission consolidated list.</u>	<u>An implementing act is expected Q1 of 2025.</u>
	Unclear. In the AI Board meeting on 10.09.2024, the Ministry of Digital Governance represented Greece.	<u>A list of 4 authorities has been published by the Ministry of Digital Governance.</u>	
	Partial clarity. According to a government resolution from 14th of May 2025, the Minister for National Economy is	<u>No authorities appear in the Commission consolidated list.</u>	<u>An earlier government resolution from the 30th of September 2024, suggested that an AI Council will be</u>

	responsible for the tasks of the authority for market surveillance and will act as a single point of contact. The resolution further designates the National Accreditation Authority as the notifying authority.		<u>established with powers to issue guidelines and resolutions.</u> <u>Delegates will include representatives from National Media and Infocommunications Authority, the Hungarian National Bank, and the Hungarian Competition Authority.</u>
	Partial clarity. According to a government resolution from the 14th of May 2025, the Minister for National Economy is responsible for the tasks of the authority for market surveillance and will act as a single point of contact. The resolution further designates the National Accreditation Authority as the notifying authority.	<u>The Department of Enterprise, Trade and Employment has listed 9 national public authorities.</u>	
	Partial clarity.	<u>No authorities appear in the</u>	

	A legislative proposal from May 2024 designates the National Cybersecurity Agency (Agenzia per la Cybersicurezza Nazionale, ACN) as market surveillance authority with monitoring, inspection and enforcement powers in relation to AI systems. The proposal designates the Agency for Digital Italy (Agenzia per l'Italia Digitale, AgID) as notifying authority.	<u>Commission consolidated list.</u>	
	Unclear. The Ministry of Smart Administration and Regional Development (VARAM) is responsible for the implementation of the AI Act and has developed a report on the implementation of the AI Act. The report recommends that the Ministry of Economic Affairs be designated as the notifying authority, with the Latvian National Accreditation	1 authority appears in the Commission consolidated list, namely the Ombudsman.	

	Bureau acting as the national accreditation body. The report suggests that market surveillance be carried out by 12-14 authorities.		
	Clear. A pending implementing law designates the Innovation Agency as the notifying authority. The proposal designates the Regulatory Communications Authority as an AI market surveillance authority and single point of contact.	<u>A list of 4 authorities has been published by the Ministry of the Economy and Innovation.</u>	<u>Lithuania has launched AI sandbox pilots.</u>
	Clear. The National Commission for Data Protection has been designated as competent authority for the implementation of the AI Act. A draft law implementing the AI Act was introduced in December 2024 outlining three	<u>A list of 3 authorities has been published by the Department of media, connectivity and digital policy.</u>	A national AI strategy is expected in the spring of 2025.

	notifying authorities: the Luxembourg Accreditation and Surveillance Office; The Luxembourg Agency for Medicines and Health Products; and the Government Commissioner for Data Protection to the State. Further, this law also lays out a range of market surveillance authorities including the Judicial control authority; Financial sector supervisory commission; and the Insurance Commission.		
	Clear. The Malta Digital Innovation Authority (MDIA) and the Information Data Protection Commission will jointly serve as market surveillance authorities. Further, the MDIA is designated as a notifying authority together with the National Accreditation Board.	<u>A list of 10 authorities protecting fundamental rights has been outlined.</u>	
	Unclear. In the AI Board meeting on 10.09.2024,	<u>A list of 6 institutions were published in</u>	<u>The Dutch Data Protection Authority and the Dutch Authority for Digital</u>

	the Ministry of Economic Affairs and Climate Policy represented the Netherlands.	<u>coordination by three different ministries.</u>	<u>Infrastructure have published recommendations on an integrated approach to supervision with the AI Act in the Netherlands.</u>
	Partial clarity. A pending implementing act creates a new body, the Committee on Development and Security of AI, as the market surveillance authority and single point of contact. The act designates the Minister of Digitization as notifying authority.	<u>The Ministry of Digitization has published a list of 3 authorities.</u>	<u>The law is expected to be adopted by Q2 2025.</u>
	Unclear. In the AI Board meeting on 10.09.2024, the Administrative Modernization Agency represented Portugal.	<u>The Ministry of Youth and Modernization released a list of 14 agencies.</u>	
	Partial clarity. According to the Romanian national AI strategy from July 2024, a new AI Regulatory Authority will be established with the	<u>A list of 9 authorities has been published by the Authority for Digitalization of Romania.</u>	

	purpose of fulfilling the tasks of the notifying authority as well as market surveillance authority. The strategy falls under the scope of the Authority for the Digitalization of Romania which was also the authority representing Romania in the AI Board meeting on 10.09.2024.		
	Unclear. In the AI Board meeting on 10.09.2024, the Ministry of Investment, Regional Development and Informatics represented Slovakia.	<u>2 authorities appear in the Commission consolidated list.</u>	A Standing Commission on Ethics and Regulation of AI (CERAI) was established in 2020. Slovakia is a neutral, independent non-profit platform facilitating cooperation on AI between academia, employers, government representatives, and representatives of international institutions.
	Unclear. The Ministry of Digital Transformation is responsible for implementing the AI	<u>10 authorities appear in the Commission consolidated list.</u>	

	Act into Slovenian law. As per 12.09, an expert council consisting of Slovenian experts is expected to be established to advise on the implementation.		
	Partial clarity. The Spanish Artificial Intelligence Supervisory Agency (AESIA) was established in September 2023 as an autonomous agency of the Spanish Department of Digital Transformation. The agency will constitute market surveillance authority and single point of contact. The notifying body has not been designated.		
	Unclear. The Swedish Data Protection Authority as well as the Swedish Digitalization Authority have published statements about the implementation of the AI Act. In the AI Board meeting on 10.09.2024, the Ministry of Finance represented Sweden.		

In 2026, the EU pushes the AI Act into full gear—forcing the Commission to release hands-on implementation guidance by February, switching on the remaining legal obligations in August, pulling existing high-risk AI systems into compliance when they undergo major updates, and requiring every Member State to have a fully operational AI regulatory sandbox ready to test cutting-edge systems.

Publish Article 6 Guidance

Commission releases practical instructions and monitoring guidance.



2 February
2026

2 August
2026



Full EU AI Act Application

All remaining rules take effect (except Article 6(1)).

Existing High-Risk AI Caught

Existing high-risk AI systems enter the regime only if significantly redesigned after this date.



2 August
2026

2 August
2026



AI Reg. Sandboxes Go Live

Each country must have at least one operational regulatory sandbox.

Timeline

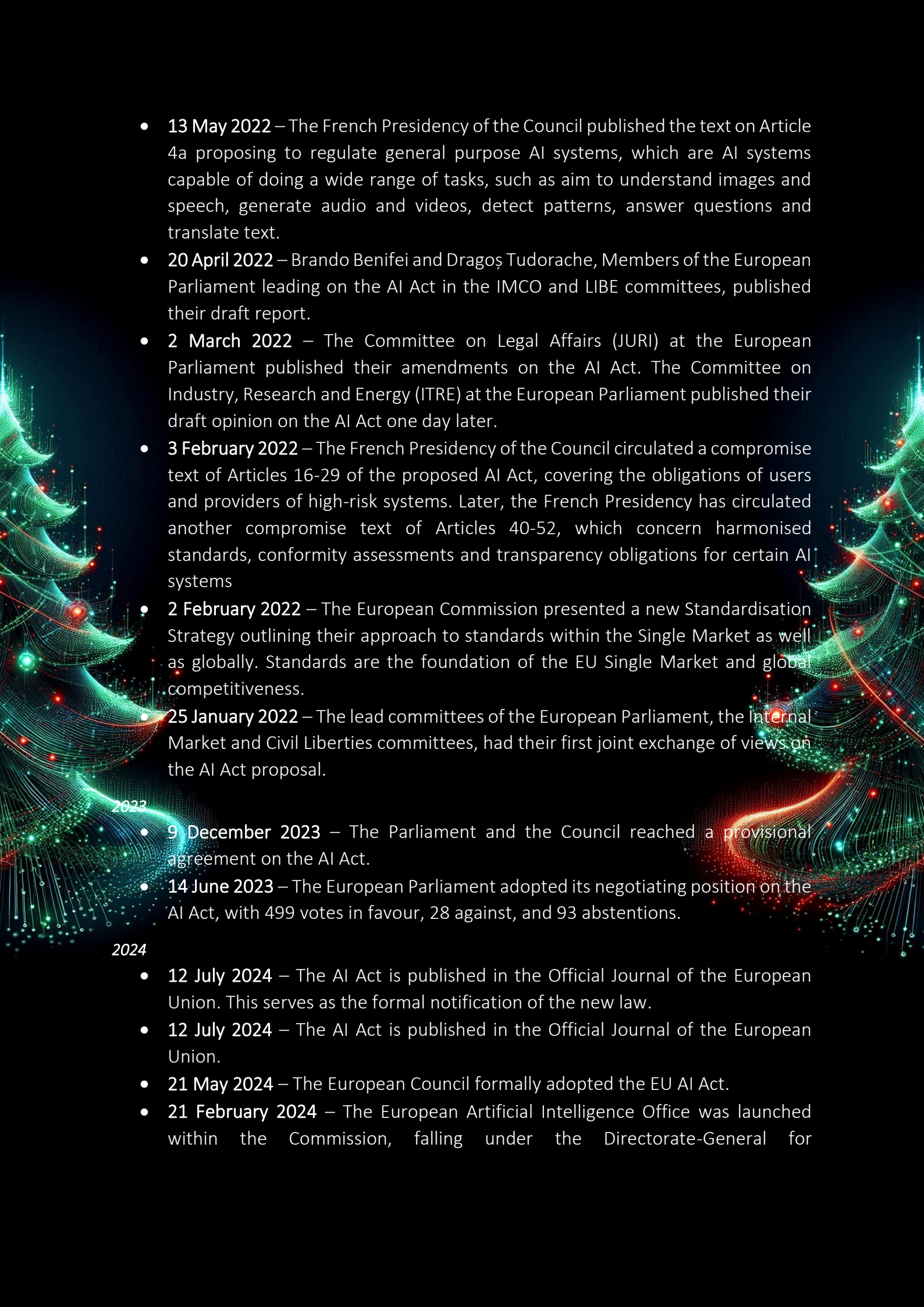
2021-2031

2021

- 1 December 2021 – The European Parliament's internal market and civil liberties committees will jointly lead negotiations on the AI Act with Brando Benifei (S&D, Italy) being the lead negotiator together with Dragoş Tudorache (Renew, Romania) from the civil liberties committee.
- **29 November 2021** – The rotating presidency of the EU Council shared a first compromise text on the AI Act draft with major changes in the areas of social scoring, biometric recognition systems, and high-risk applications.
- **6 August 2021** – A study analysing the use of biometric techniques from an ethical and legal perspective commissioned by the European Parliament's Policy Department for Citizens' Rights and Constitutional Affairs was published.
- **6 August 2021** – The public consultation period on the AI Act by the European Commission ended. The Commission received 304 submissions which can be read [here](#).
- **20 July 2021** – Slovenian Presidency of the Council of the European Union organised a virtual conference on the regulation of artificial intelligence, ethics and fundamental rights.
- **21 April 2021** – The Commission published a proposal to regulate artificial intelligence in the European Union.

2022

- **6 December 2022** – The Council of the EU adopted its common position ('general approach') on the AI Act.
- **28 September 2022** – The European Commission proposed a targeted harmonisation of national liability rules for AI, aiming to complement the AI Act by facilitating civil liability claims for damages.
- **5 September 2022** – The Committee on Legal Affairs (JURI) at the European Parliament adopted their opinion on the AI Act as the last committee in the Parliament.
- **17 June 2022** – The Czech Presidency of the Council of the EU shared a discussion paper with other EU governments, listing the main priorities of the AI Act for them.
- **15 June 2022** – The French Presidency of the Council of the EU circulated their final compromise text before Czech took over the presidency.
- **1 June 2022** – Deadline for each political group of the European Parliament to submit amendments to the AI Act. Thousands of amendments were submitted in total and briefly summarised [here](#).

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- **13 May 2022** – The French Presidency of the Council published the text on Article 4a proposing to regulate general purpose AI systems, which are AI systems capable of doing a wide range of tasks, such as aim to understand images and speech, generate audio and videos, detect patterns, answer questions and translate text.
 - **20 April 2022** – Brando Benifei and Dragoş Tudorache, Members of the European Parliament leading on the AI Act in the IMCO and LIBE committees, published their draft report.
 - **2 March 2022** – The Committee on Legal Affairs (JURI) at the European Parliament published their amendments on the AI Act. The Committee on Industry, Research and Energy (ITRE) at the European Parliament published their draft opinion on the AI Act one day later.
 - **3 February 2022** – The French Presidency of the Council circulated a compromise text of Articles 16-29 of the proposed AI Act, covering the obligations of users and providers of high-risk systems. Later, the French Presidency has circulated another compromise text of Articles 40-52, which concern harmonised standards, conformity assessments and transparency obligations for certain AI systems
 - **2 February 2022** – The European Commission presented a new Standardisation Strategy outlining their approach to standards within the Single Market as well as globally. Standards are the foundation of the EU Single Market and global competitiveness.
 - **25 January 2022** – The lead committees of the European Parliament, the Internal Market and Civil Liberties committees, had their first joint exchange of views on the AI Act proposal.

2023

- **9 December 2023** – The Parliament and the Council reached a provisional agreement on the AI Act.
- **14 June 2023** – The European Parliament adopted its negotiating position on the AI Act, with 499 votes in favour, 28 against, and 93 abstentions.

2024

- **12 July 2024** – The AI Act is published in the Official Journal of the European Union. This serves as the formal notification of the new law.
- **12 July 2024** – The AI Act is published in the Official Journal of the European Union.
- **21 May 2024** – The European Council formally adopted the EU AI Act.
- **21 February 2024** – The European Artificial Intelligence Office was launched within the Commission, falling under the Directorate-General for

Communication Networks, Content and Technology to support the implementing of the AI Act, especially for general-purpose AI.

- **13 February 2024** – the Internal Market and Civil Liberties Committees voted 71-8 (7 abstentions) to approve the result of negotiations with the member states on the AI Act. * The EU's 27 member states have unanimously endorsed the AI Act, affirming the political agreement reached in December.
- **1 August 2024 – Application:** Date of entry into force of the AI Act. At this stage, none of the Act's requirements apply—they will begin to apply gradually over time.
- **2 November 2024 – Member States:** Deadline for Member States to identify and publicly list the authorities / bodies responsible for fundamental rights protection, and to notify the Commission and other Member States.

2025

- **2 February 2025 – Application:** Prohibitions on certain AI systems and requirements on AI literacy start to apply ([Chapter 1](#) and [Chapter 2](#)).
- **2 May 2025 – Commission:** Codes of practice shall be ready by this date.
- **2 August 2025 – Application :** The following rules start to apply:
 - Notified bodies ([Chapter III, Section 4](#)),
 - GPAI models ([Chapter V](#)),
 - Governance ([Chapter VII](#)),
 - Confidentiality ([Article 78](#))
 - Penalties (Articles [99](#) and [100](#))
- **2 August 2025 – Providers:** Providers of GPAI models that have been placed on the market / put into service before this date need to be compliant with the AI Act by 2 August 2027.
- **2 August 2025 (and every two years thereafter) – Member States:** Deadline for Member States to report to the Commission on the status of the financial and human resources of the national competent authorities.
- **2 August 2025 – Member States:** Deadline for Member States to designate national competent authorities (*notifying authorities and market surveillance authorities*), communicate them to the Commission, and make their contact details publicly available.
- **2 August 2025 (based on date of application of Articles on 'Penalties') – Member States:** Deadline for Member States to lay down rules for penalties and fines, notify them to the Commission, and ensure that they are properly implemented.
- **2 August 2025 – Commission:** (*If code of practice cannot be finalised, or if the AI Office deems it is not adequate*) Commission may provide common rules for the

implementation of the obligations for providers of GPAI models via implementing acts.

- **2 August 2025 (and every year thereafter) – Commission:** Deadline for annual Commission review and possible amendments on prohibitions.
- **7 October 2025 — Commission (Apply AI Strategy Launch).** The Commission adopts the Apply AI Strategy and launches the AI Act Service Desk to support implementation and stakeholder guidance.
- **5 November 2025 — Commission (Code of Practice Work Begins).** The Commission begins drafting the Code of Practice for general-purpose AI under the AI Act framework.
- **19 November 2025 — Commission (Proposal Publication) (Digital Omnibus on AI).** The Commission publishes the Digital Omnibus package, launching the legislative process to amend and streamline selected provisions of the EU AI Act.

2026

- **2 February 2026 - Commission:** Deadline for Commission to provide guidelines specifying the practical implementation of Article 6, including post-market monitoring plan.
- **2 August 2026 = Application:** The remainder of the AI Act starts to apply, except Article 6(1).
- **2 August 2026 = Operators:** This Regulation shall apply to operators of high-risk AI systems (*other than those systems referred to in Article 111(1)*), placed on the market / put into service before this date. However, this only applies to systems which are subject to significant changes in their designs from this date onwards.
- **2 August 2026 = Member States:** Member States shall ensure that their competent authorities have established at least one AI regulatory sandbox at national level. It should be operational by this date.

2027

- **2 February 2027 — Providers (AI-Generated Content Labelling for Existing Systems).** Providers with AI systems already on the market before 2 August 2026 must comply with Article 50(2) synthetic-content labelling obligations by 2 February 2027.
- **2 August 2027 = Application:** Article 6(1) and the corresponding obligations in the Regulation start to apply.
- **2 August 2027 – Providers:** Providers of GPAI models placed on the market before 2 August 2025 must have taken the necessary steps to comply with the obligations laid down in this Regulation by this date.
- **2 August 2027 - Large-scale IT Systems:** AI systems which are components of the large-scale IT systems listed in Annex X and that were placed on the market / put

into service before this date shall be brought into compliance with this Regulation by 31 December 2030.

- **2 December 2027 — High-Risk AI Providers (Annex III Systems) (Digital Omnibus on AI)** Obligations for Annex III high-risk AI systems apply six months after the Commission confirms the availability of harmonised standards or common specifications, and in any event no later than 2 December 2027.

2028

- **2 August 2028 – Commission:** Commission shall evaluate the functioning of the AI Office.
- **2 August 2028 (and every three years thereafter) – Commission:** Commission shall evaluate the impact and effectiveness of voluntary codes of conduct.
- **2 August 2028 (and every four years thereafter) – Commission :** Commission shall evaluate and report to the European Parliament and to the Council on the need for amendments to:
 - Area headings in Annex III,
 - List of AI systems requiring additional transparency measures in Article 50,
 - The supervision and governance system.
- **2 August 2028 (and every four years thereafter) – Commission:** Commission shall submit a progress report on ‘standardisation deliverables’ which cover the topic of energy-efficient development of general-purpose AI models. This report must be submitted to the European Parliament and Council, and made public.
- **2 August 2028 — High-Risk AI Providers (Annex I Systems) (Digital Omnibus on AI).** Obligations for Annex I high-risk AI systems begin twelve months after the Commission confirms the availability of harmonised standards or common specifications, and in any event no later than 2 August 2028.
- **1 December 2028 (which is 9 months prior to 1 August 2029) – Commission:** Commission must draw up a report on the delegation of power outlined in Article 97.

2029

- **1 August 2029 – Commission:** The Commission’s power to adopt delegated acts referred to in the following articles expires—unless this period is extended:
 - Article 6 (6) and (7),
 - Article 7 (1) and (3),
 - Article 11 (3),
 - Article 43 (5) and (6),

- Article 47 (5),
 - Article 51 (3),
 - Article 52 (4),
 - Article 53 (5) and (6)
- The delegation of power will, by default, be extended for recurring 5-year periods unless the European Parliament or the Council opposes such extension three months or more before the end of each period.
 - **2 August 2029** (*and every four years thereafter*) – **Commission:** Commission shall submit a report on the evaluation and review of this Regulation to the European Parliament and to the Council.

2030

- **2 August 2030 – Providers & Deployers:** Providers and deployers of high-risk AI systems intended to be used by public authorities must have taken the necessary steps to comply with the requirements and obligations of this Regulation by this date.
- **31 December 2030 – Large-scale IT Systems:** Deadline for AI systems which are components of the large-scale IT systems listed in Annex X and that were placed on the market or put into service before 2 August 2027 to be brought into compliance with this Regulation.

2031

- **2 August 2031 – Commission:** Commission shall carry out an assessment of the enforcement of this Regulation and shall report on it to the European Parliament, the Council and the European Economic and Social Committee.

Post-Adoption

- **Commission & Member States (AI Literacy Adjustment).** If adopted, the Digital Omnibus replaces mandatory AI literacy requirements for providers and deployers with a duty for the Commission and Member States to encourage AI-competence development through support and funding measures.



Evaluating Progress



Room for Improvement

Twelve months in, the EU AI Act has delivered mixed results. On the one hand, awareness about AI regulation, individuals' rights in relation to automated decision-making, and avenues for redress has increased. Civil society organisations and regulators have published guides to explain the new rights and obligations introduced by the EU AI Act, provided model complaint templates and contact information for national competent authorities — all intended to help citizens and organisations understand the new rules.

The number of complaints, reports and incident notifications related to AI systems has also risen over the past year, suggesting that oversight bodies and affected individuals are using the mechanisms the Act created. Many national competent authorities report an uptick in enquiries and formal complaints since the Act entered into force. Likewise, reports of serious AI-related incidents (for example systems causing harm, discriminatory outputs, or large-scale failures) have been more visible, partly because the Act established clearer reporting and post-market monitoring duties for providers and deployers of AI systems. This shift does not necessarily mean AI systems are failing more often; rather, it indicates improved detection and reporting — which benefits users by increasing transparency and creating incentives for providers to strengthen

risk management, update systems, and raise safety standards.

On the other hand, this report highlights several problems with implementation and enforcement of the EU AI Act, from the risk of fragmentation between Member States to delays in resolving complaints. Some of the delays can be attributed to the fact that many national authorities have not seen proportional increases in resources or staff to match the new workload. As a result, a number of competent authorities lack the capacity to respond promptly to the growing volume of requests and to ensure that the rights and protections the Act promises are consistently enforced.

Worse still, several measures adopted by Member States as they adapt to the new legal framework appear to contradict the spirit — and in some cases the letter — of the EU AI Act. For example, measures have been proposed or enacted that would permit political actors to deploy AI-driven profiling and messaging based on information gathered from publicly accessible sources without robust safeguards or meaningful consent, or that would exempt certain high-risk practices from closer scrutiny. Such provisions have provoked serious concerns among NGOs, Members of the European Parliament and other stakeholders about potential breaches of fundamental safeguards the Act intends to protect, including



transparency, the right to contest automated decisions, and protections against unlawful profiling. In some cases these national measures have been subject to legal challenge or intervention by oversight bodies.

Overall, the first year since the EU AI Act entered into force shows promising signs — greater awareness, more reporting, and more public scrutiny — but also clear shortcomings in resources, coherence and national implementation that must be addressed to ensure the Act fulfils its protective and innovation-friendly objectives.

The Role of National Competent Authorities

National competent authorities and supervisory bodies, as the main entities supervising and enforcing the EU AI Act, will play a central role in the success or failure of the law. Throughout this report we have stressed the importance for Member States to respect the independence of these authorities and to provide them with increased financial and human resources to ensure they have the means to perform their tasks adequately.

The current lack of resources and the restructuring many authorities have undertaken to prepare for the EU AI Act can partly explain the slow enforcement of the law so far. We also note that a number of authorities, including the Irish Data Protection Commission (DPC), present themselves as partners to AI providers and deployers and frame part of their role as offering “guidance” and

“support” for compliance. While we appreciate and acknowledge the value of guidance and recommendations, these authorities’ primary responsibility under the EU AI Act is monitoring the application of the regulation in order to protect the fundamental rights and freedoms of affected people. Priority must be given to users, their rights, and their complaints.

Addressing the elephant in the room, we must consider the unique role of the Irish Data Protection Commission. As a result of decades of economic policy that encouraged foreign investment, in particular from the US, Ireland has become the principal European base for many tech companies. Over the years, as more companies established their European presence in Ireland, tech firms have gained an outsized influence in domestic policy debates. Reports have shown how industry pressure has shaped government decisions on taxation and investment. Enforcement of AI-related rules has also become a target for lobbying. Many leading tech companies—apart from a few exceptions—have chosen Ireland as their main EU establishment under applicable rules for digital services and data-driven systems, which gives the Irish DPC a central role in addressing the (already many) complaints brought against these companies. For obvious reasons, the DPC’s willingness to make full use of its powers, including applying deterrent sanctions against large companies for breaches of the EU AI Act, has been subject to scrutiny. The



DPC has opened several investigations since the Act entered into force, but twelve months into application and with many complaints filed, stakeholders are still awaiting major decisions on some high-profile complaints and investigations.

To protect the rights of EU individuals affected by AI systems, the Irish DPC and other national competent authorities must now make use of all the powers and sanctioning mechanisms available under the EU AI Act. As providers and deployers of AI seek to concentrate regulatory jurisdiction and minimise exposure to stricter oversight in other Member States, the EU must guard against forum shopping in the enforcement of AI rules. In that context, the role of the European Commission and of the newly established European Artificial Intelligence Board in applying the Act's cooperation and consistency mechanisms will be crucial.

The Risk of 'Business as Usual'

Since the EU AI Act entered into force, there have been encouraging signs that compliance-driven decisions can deliver not only stronger protections for users but also better customer service and business growth. Innovating on trustworthy and compliant AI can create commercial value, and many firms may yet adapt their business models to reflect that reality. For the time being, however, a large number of companies and public bodies continue to operate in ways that raise serious concerns under the new legal framework and against

the fundamental principles the Act promotes.

Providers and deployers are still rolling out opaque automated systems on websites, across platforms and through devices without meaningful transparency, without adequate risk assessments, and without informing affected people about how significant decisions are made or what rights they have to contest or seek redress. These practices persist despite the Act's requirements for risk management, technical documentation, transparency information for users, human oversight and, for certain high-risk systems, conformity assessment and post-market monitoring. Entities cannot simply rely on fragmented sectoral approaches to avoid these obligations; harmonised enforcement and clear guidance are needed to close implementation gaps.

We also observe the growing use of design choices that discourage people from exercising rights or that push them toward intrusive defaults. Reports and investigations into "dark patterns" and manipulative interfaces show how defaults, hidden options and coercive consent flows are used to nudge users into accepting invasive profiling, personalised decision-making and other AI practices. Such tactics undermine informed choice and accountability and work directly against the Act's objective of trustworthy-by-design systems.

The real novelty of the EU AI Act is not merely to restate principles already





discussed elsewhere, but to embed concepts like a risk-based approach, accountability, AI-by-design and by-default, robust documentation, and effective enforcement into a single regulatory framework. The long-term aim is to change how providers and deployers assess, build and operate AI systems — shifting from a compliance-as-tickbox mindset to engineering and governance practices that prevent harm. One year into application, the AI-by-design and accountability mindset is far from an industry standard: from lack of transparency and incomplete risk management to insufficient human oversight and discriminatory outcomes, there is ample evidence that it is time to end “business as usual” and enforce the Act so its promises become reality.

‘The Whole World is Watching Us’

While this report focuses on the implementation and enforcement of the law within the EU, it is important to note that the EU AI Act has a global impact. During the negotiations there was a clear sense among policymakers and stakeholders that the world was watching how the EU would regulate AI. There was pressure to get the regulation right—not just for the effects it would have inside the Union but for the standard it could set internationally. The Act’s wide territorial reach and its potential to create a domino effect mean its influence extends far beyond EU borders.

The adoption of the EU AI Act has already sparked intensified debates and

legislative activity around the world on how to govern AI. Many countries are revising or introducing rules on AI governance, algorithmic accountability and automated decision-making to align with emerging global norms, to preserve market access, or to respond to domestic concerns about safety, fairness and fundamental rights. Others are closely watching the EU’s approach to conformity assessment, risk classification and post-market monitoring to inform their own law-making.

As with previous major regulatory initiatives, these debates are taking place under intense political pressure and vigorous corporate lobbying. Companies whose business models depend on large-scale profiling, automated targeting or unconstrained deployment of powerful AI systems may resist tighter rules.

The EU AI Act is not perfect, and the first year of enforcement has produced mixed results. Awareness-raising, guidance production and organisational reorganisation by authorities are understandably time-consuming, but that makes it all the more urgent to act decisively now—the world is watching. Getting enforcement right matters not only for businesses and users inside the EU but also for the broader global trajectory of AI governance and the protections that people everywhere can expect



Recommendations





To address some of the issues and challenges detailed in this report, Access Now has prepared recommendations directed at the EU Commission, the Member States, national competent authorities (and supervisory bodies) responsible for the EU AI Act, and the European Artificial Intelligence Board. We believe that the implementation of these concrete recommendations will help ensure that the promise of the EU AI Act — to strengthen rights, safety and accountability around AI — is effectively delivered across the EU.

1. Recommendations to the Member States

→ Member States must provide their national competent authorities for AI with appropriate financial and human resources so that they can conduct their monitoring, investigation, conformity-assessment oversight, and supervision tasks adequately.

→ Member States must ensure the independence of their national competent authorities — both in terms of budget and powers. Authorities' structure, functioning, and priorities shall be defined in a transparent manner. Reforms should be carried out to ensure that executive bodies or political actors do not interfere with the nomination, organisation, or functioning of these authorities.

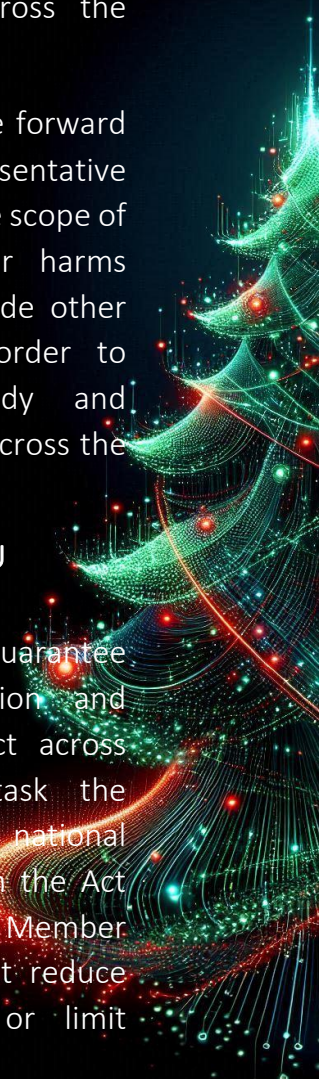
→ Member States must ensure that any national adaptation measures or implementing acts respect the spirit, essence, and content of the EU AI Act to ensure harmonisation and a consistent high level of protection across the Union.

→ Member States must move forward the negotiations on the Representative Action Directive in Council. The scope of this legislation should cover harms caused by AI systems alongside other relevant digital harms, in order to improve access to remedy and collective redress for people across the EU.

2. Recommendations to the EU Commission

→ The EU Commission must guarantee a harmonised implementation and application of the EU AI Act across Member States. In this task the Commission must ensure that national measures do not depart from the Act and must intervene where Member States impose conditions that reduce the scope of protections or limit individuals' rights.

→ The EU Commission must launch infringement procedures against Member States when violations are reported due to incorrect implementation or obstructive national measures, and must set clear deadlines for remedying such shortcomings.



3. Recommendations to National Competent Authorities

→ National competent authorities must prioritise the processing of individuals' complaints about AI systems and put in place transparent processes to publish enforcement actions, decisions and reasoning.

→ Authorities should investigate deceptive design, manipulative interfaces and other practices that coerce or obscure meaningful consent, transparency, or contestability in relation to AI-driven services.

→ Authorities must make full use of the enforcement mechanisms available under the EU AI Act by imposing proportionate and deterrent sanctions, issuing corrective orders, and requiring remediation or suspension of unlawful high-risk systems.

→ Authorities should continue to provide clear, practical guidance and sectoral advice on how to implement the EU AI Act for providers, deployers, public entities and affected people.

4. Recommendations to the European Artificial Intelligence Board

→ The European Artificial Intelligence Board must act to prevent forum shopping of representation and ensure harmonisation in the application of the EU AI Act across Member States.

→ The European Artificial Intelligence Board must increase transparency of its deliberations by publishing minutes, opinions and the rationale behind consistency decisions.

→ The Board must ensure consistency in the resolution of cross-border cases. To that end, it should develop clear guidelines for cooperation between national competent authorities and require transparent, time-bound procedures for coordinated investigations and decisions.



Conclusion





During the negotiation process of the EU AI Act, policymakers faced what often seemed to be an unachievable task: agreeing on a legal text that would be acceptable to all political groups, Member States, and stakeholders with highly divergent interests.

The EU AI Act became one of the most intensely debated legislative files in recent EU history, with thousands of amendments proposed during parliamentary negotiations and extensive discussions in the Council that lasted several years. Despite these challenges, a final compromise was eventually reached. The text was adopted by a broad majority in the European Parliament, with support from across the political spectrum. On the day of its adoption, no one was entirely satisfied with the final law — perhaps not even its key negotiators — yet the outcome still represented a positive step toward strengthening the protection of fundamental rights and ensuring safe, trustworthy AI across the EU under a digital-age framework.

Much like its negotiators, the EU AI Act faced its own “impossible task” during its initial phase of application: delivering on its wide-ranging promises and

making responsible AI development and deployment a reality across the Union. After a transition period intended to allow national authorities, AI providers, and deployers to prepare for compliance, the Act was expected to produce visible benefits from the start. It would be easy to interpret the mixed results observed in the first year as signs of failure, or to view the Act as favouring large companies over smaller ones. Such interpretations overlook both the complexity of the technological landscape and the gradual nature of legal and organisational change. Implementing long-term reforms and shifting practices that have been entrenched for years cannot happen within twelve months.

Evaluating the success or failure of the EU AI Act will also require time. Despite early challenges, we remain confident that the Act’s potential will be realised. We are encouraged by the growing awareness of AI-related risks, the strategic choices some organisations are making to adopt trustworthy-by-design AI models, and the first enforcement and oversight actions emerging across Member States

With sustained investment and commitment from the European Commission, Member States, national supervisory authorities, the European Artificial Intelligence Office and Board, and the active engagement of civil society, the EU AI Act has the potential to become one of the EU’s greatest achievements in safeguarding fundamental rights and public interests in the age of artificial intelligence.

Appendix: List of AI Laws

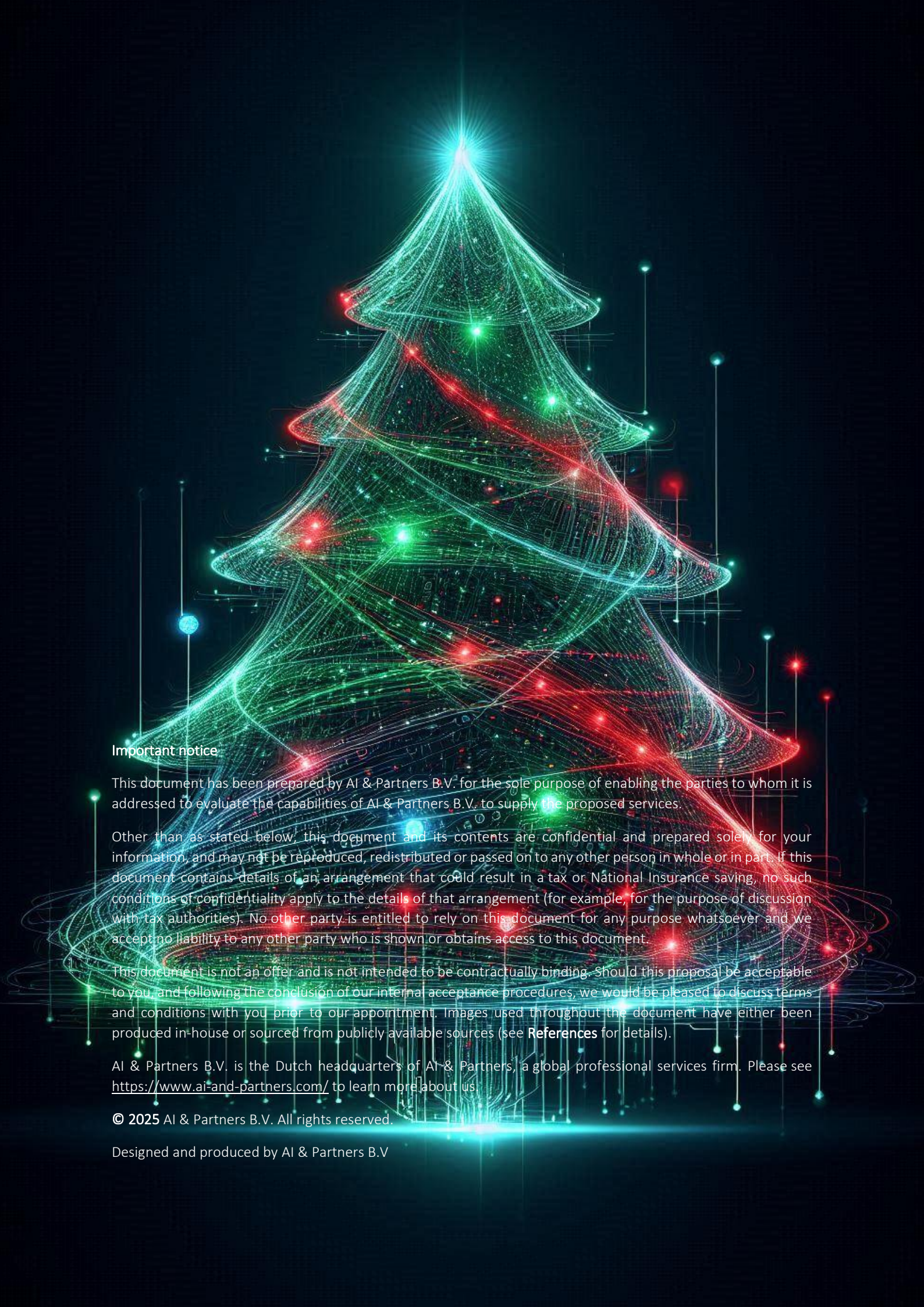


Country	Country
	No dedicated AI Act. An AI Service Desk was set up at the Austrian Regulatory Authority for Broadcasting and Telecommunications (RTR) to support EU AI Act implementation. Austria has advisory bodies (e.g. KI Beirat AI Advisory Board) but no new AI law.
	No national AI Act law. The government created AI advisory committees by royal decree (Data Ethics and AI Advisory Committee on 4 Oct 2023; AI Steering Committee on 24 May 2024) to prepare for the EU AI Act.
	No AI-specific legislation beyond existing laws. Bulgaria's "AI to 2030" strategy was adopted in 2020, but no implementing act has been passed; AI is still governed under general data protection and anti-discrimination law.
	No standalone AI Act. The Ministry of Justice/Administration and Digital Transformation has designated 7 public authorities to enforce the EU AI Act, but no new national law has been enacted.
	No national AI law. Cyprus has notified three authorities under the AI Act: the Commissioner for Communications as market surveillance authority and single point of contact, along with the Data Protection Commissioner and Ombudsman in their fields. No implementing legislation published yet.
	<i>Draft bill on AI.</i> A 10-page draft law for the AI Act implementation was prepared by the Industry Ministry and published on 26 Sep 2025. It is currently in inter-ministerial consultation. (Expected to be submitted to government next; no law enacted yet.)
	<i>Act on AI Systems</i> – adopted 8 May 2025 (Folketing); entered into force 2 Aug 2025. This national law adds rules to enable EU AI Act enforcement (designation of Danish Digital Agency as notifying/market authority, penalties, etc.) in accordance with Art.113 of the AI Act.
	No AI Act law. Estonia has published a list of 3 national authorities for the AI Act (via Ministry orders), but no implementing statute has been enacted. Ongoing policy work only.
	<i>Draft implementing act</i> (hallintalaki muutos) – introduced Oct 2024, currently in Parliament. The draft appoints 10 existing agencies as market surveillance authorities (Finnish Transport & Communications Agency as contact point). No law enacted yet.
	No specific AI Act law. France plans a sector-based enforcement model. A draft bill is being prepared to designate supervisory authorities (DGCCRF as coordinator, with CNIL, ANSM, ARCOM, etc. sectorally). (No national AI law has been passed.)

	No AI Act law. Germany relies on existing tech-neutral laws; no national AI legislation has been enacted. A possible implementing act (KI-MIG) was discussed, but as of mid-2025 no new law is in force or approved.
	No AI law. The Ministry of Digital Governance published a list of 4 authorities to handle EU AI Act tasks, but no new legislative act has been enacted for the AI Act.
	No national law. The government issued resolutions (30 Sep 2024, 14 May 2025) assigning the Economy Minister as market surveillance authority and Hungary's Accreditation Authority as notifying body. These designations await formal law; no AI-specific statute exists.
	No AI Act law yet. The Irish government announced on 5 Mar 2025 that it will use a distributed enforcement model; heads of bill for a " <i>Regulation of Artificial Intelligence and Non-Personal Data</i> " Act are being prepared. (This draft will designate competent authorities; enactment expected after autumn 2025.)
	Law No. 132/2025 (the "Italian AI Law") – enacted by Parliament, in force from 10 Oct 2025. This is a comprehensive national AI law implementing the EU AI Act.
	No AI Act law. The Ministry for Smart Governance published a March 2025 report recommending designating the Ministry of Economics as notifying authority and up to 14 bodies for market surveillance. No draft legislation has been introduced yet.
	<i>Draft implementing law</i> – pending proposal expected in 2025. A Lithuanian draft law has been prepared (in Economy Ministry) designating the Innovation Agency as notifying authority and the Communications Regulator as surveillance authority, but it has not been enacted yet.
	<i>Projet de loi</i> (Draft Bill) – deposited 23 Dec 2024. This draft " <i>Loi portant mise en œuvre du règlement (UE) 2024/1689</i> " is currently in legislative committee. It outlines multiple notifying and surveillance authorities. No law in force yet.
	No AI Act law. The Malta Digital Innovation Authority (MDIA) and Data Protection Commissioner have been designated for AI market surveillance, and MDIA plus National Accreditation Board as notifying authorities. These were done by administrative notices; no statute has been passed.
	No national AI Act law. The Dutch government stated it will not complete authority appointments by Aug 2025. Only preparatory

	measures (e.g. proposals for regulatory sandbox) exist. No draft or enacted law specific to AI yet.
	<i>Draft Act on Artificial Intelligence Systems</i> – published 16 Oct 2024 (Ministry of Digital Affairs). This draft sets up a Committee on AI and designates authorities. It remains pending; no national AI law has been enacted.
	No AI Act law. In 2024 the government published a list of 14 agencies (via Ministry list) to carry out AI Act tasks. No new implementing law has been proposed or passed.
	No dedicated law. Romania's 2024 National AI Strategy provides for creating a new "AI Regulatory Authority" as notifying and surveillance body. No implementing legislation has been enacted yet.
	No AI Act law. Slovakia is relying on existing bodies. It has a 2020 Ethics Commission on AI (CERAI) and various agencies but no new legislation. No national AI-specific act has been adopted.
	No AI Act law. The Ministry of Digital Transformation is responsible, and an expert council is being formed (as of late 2024). No implementing statute has been passed.
	Royal Decree 729/2023 (Statute of AESIA) – approved 22 Aug 2023 and in force Sep 2023 (establishing the Spanish AI Supervisory Agency). Draft Spanish AI Law ("Ley para el Buen Uso y Gobernanza de la IA") – approved by Council of Ministers on 11 Mar 2025 (pending parliamentary approval).
	No AI-specific law. The Swedish Data Protection Authority (IMY) and Digitization Authority (DIGG) have issued guidance on the AI Act, and a new AI Council was set up. No legislation has been introduced for AI Act implementation.





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